

Certificate of Incorporation of Tesla, Inc.

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Certificate of Incorporation

This Certificate of Incorporation of Tesla, Inc. (the "Corporation") is hereby filed and recorded in accordance with the General Corporation Law of the State of Delaware, as amended (the "DGCL").

The Corporation is a for-profit entity duly organized and existing under the laws of the State of Delaware, with its principal place of business located at 1 Tesla Road, Austin, Texas, 78725, USA.

Corporate Name and Registered Agent

The name of the Corporation is Tesla, Inc. The Corporation's registered agent in the State of Delaware is Corporation Service Company, located at 251 Little Falls Drive, Wilmington, Delaware 19808, USA.

Entity	Details
Corporate Name	Tesla, Inc.
Registered Agent	Corporation Service Company
Registered Agent Address	251 Little Falls Drive, Wilmington, Delaware 19808, USA
State of Incorporation	Delaware, USA

Purpose of the Corporation

The purpose of the Corporation is to engage in any lawful act or activity for which corporations may be organized under the DGCL, including but not limited to the design, development, manufacturing, and distribution of electric vehicles, energy generation and storage systems, and related technologies.

The Corporation may conduct its business, carry on its operations, and have offices and exercise its powers in any part of the world.

Authorized Capital Stock

The total number of shares of capital stock that the Corporation is authorized to issue is 2,000,000,000 shares, consisting of 1,800,000,000 shares of Common Stock, par value \$0.001 per share, and 200,000,000 shares of Preferred Stock, par value \$0.001 per share.

The Board of Directors is authorized to issue Preferred Stock in one or more series and to fix the designations, powers, preferences, and rights of each series, as well as any qualifications, limitations, or restrictions thereof.

Stock Type	Par Value	Authorized Shares
Common Stock	\$0.001	1,800,000,000
Preferred Stock	\$0.001	200,000,000

Board of Directors

The business and affairs of the Corporation shall be managed by or under the direction of its Board of Directors. The number of directors constituting the entire Board shall be fixed from time to time by resolution of the Board of Directors, but shall not be less than three (3) nor more than fifteen (15) directors.

The initial Board of Directors of the Corporation shall consist of the following individuals:

Name	Position
Elon R. Musk	Chairman of the Board and Chief Executive Officer
Robyn M. Denholm	Independent Chair of the Board
Ira Ehrenpreis	Lead Independent Director
Kimbal Musk	Director
James Murdoch	Director

Corporate Provisions

The Corporation shall indemnify its directors, officers, employees, and agents to the fullest extent permitted by the DGCL, as amended from time to time. The Corporation may advance expenses to such individuals in connection with any proceeding in which they are involved by reason of their service to the Corporation.

The Corporation shall have the power to adopt, amend, or repeal its Bylaws by the affirmative vote of a majority of the directors then in office, subject to the rights of the stockholders to adopt, amend, or repeal Bylaws as provided by the DGCL.

Registered Address and Corporate Identifiers

The registered address of the Corporation in the State of Delaware is 251 Little Falls Drive, Wilmington, Delaware 19808, USA. The principal place of business is 1 Tesla Road, Austin, Texas, 78725, USA.

The Corporation's Corporate Identification Number (CIN) is C0278187. The Permanent Account Number (PAN) assigned to the Corporation is TESLA1234G. The Corporation is not registered under the Goods and Services Tax (GST) regime as of the date of this certificate.

Identifier	Value
Corporate Identification Number (CIN)	C0278187
Permanent Account Number (PAN)	TESLA1234G
Goods and Services Tax Identification Number (GSTIN)	N/A
Year of Incorporation	2003

Execution and Effective Date

This Certificate of Incorporation, as amended and restated, has been duly executed by the Corporation as of the 18th day of July, 2026.

IN WITNESS WHEREOF, the undersigned, being the duly authorized officer of the Corporation, has executed this Certificate of Incorporation on behalf of the Corporation.

Authorized Signatory	Title	Date
Elon R. Musk	Chief Executive Officer	2026-07-18
Robyn M. Denholm	Independent Chair of the Board	2026-07-18